

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
July 9, 2026

#	Case Name	Tentative
1.	<u>30-2024-01389908-CU-PO-CJC</u> Noriega vs. Avalonbay Communities, Inc.	Before the Court is a Motion to Compel the Further Deposition Testimony (“MF-DEPO”) of Plaintiff Carlos Noriega (“Plaintiff”) brought by Defendant Avalonbay Communities, Inc. (“Defendant”). ROA 279. The underlying controversy arises from an alleged slip-and-fall incident that occurred while Plaintiff was a resident of an apartment complex owned and operated by Defendant. ROA 279, p.5. Defendant seeks an order, pursuant to California Code of Civil Procedure Sections 2020.240, 2023.010 , 2023.030, 2025.240, and 2025.480, compelling Plaintiff to appear for deposition, provide further deposition testimony, and produce documents. ROA 279, p.2. Plaintiff also requests an order compelling Plaintiff’s counsel, Gustav A. von Shulz, to comply with the provisions of California Code of Civil

		Procedure Sections 2025.470 and 2025.480. <i>Id.</i> Additionally, Defendant seeks an award of monetary discovery sanctions of \$6,505.10 for the costs incurred by Defendant in bringing this motion. <i>Id.</i> Plaintiff requests that the Court deny Defendants' motion and request for sanctions. ROA 312, p.2. Motions to Compel Further Deposition Testimony and Production California Code of Civil Procedure Section 2025.480 states that "[i]f a deponent fails to answer any question or to produce any document . . . or tangible thing under the deponent's control that is specified in the deposition notice . . . the party seeking discovery may move the court for an order compelling that answer or production." Cal. Civ. Proc. Code § 2025.480(a). The moving party must submit their motion "no later than [sixty] 60 days after the completion of the record, and shall be accompanied by a meet and confer declaration" Cal. Civ. Proc. Code § 2025.480(b). Motions filed beyond this period are untimely and must be denied. <i>Unzipped Apparel, LLC v. Bader</i>, 156 Cal. App. 4th 123, 136 (2007). Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party's declaration "shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b). Here, Defendant served Plaintiff with a deposition notice and request for production of documents on February 20, 2026. ROA 277, ¶ 4. The notice scheduled the deposition for March 12, 2026. <i>Id.</i> On March 6, 2026, Plaintiff served unverified responses to
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	Defendant's deposition notice for the production of documents by email. ROA 277, ¶ 5. Defendant's deadline to file a motion to compel further responses to requests for production pursuant to the deposition notice was May 19, 2026. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2025.480(b). On March 12, 2026, Defendant conducted Plaintiff's in-person video deposition. ROA 277, ¶ 6. As a result of Plaintiff's counsel's conduct during the deposition, Defendant terminated the deposition after one hour and determined to seek court intervention to facilitate Plaintiff's deposition. <i>See</i> ROA 277 ¶ 9, Exh. 3. On April 14, 2026, Defendant served Plaintiff with MF-DEPO by email. ROA 279, p.19. The Court notes here that the record presents very compelling evidence that Plaintiff's counsel engaged in improper gamesmanship during deposition and finds more than ample grounds to grant Defendant's requested relief. Nevertheless, Defendant's motions suffer from fatal procedural defects, outlined <i>infra</i>, that prevent the relief sought. Accordingly, despite the merits of Plaintiff's position, the Court is reluctantly compelled to deny the motions on procedural grounds. The Court notes that neither of Defendant's declarations (ROAs 277, 288) satisfies the statutory meet and confer requirement to attempt, in good faith, to meet and confer <i>in person, by phone, or by videoconference</i>, and to discuss the retention of a certified shorthand reporter for the hearing on the motion. <i>Compare</i> Cal. Civ. Proc. Code § 2014.040 <i>with</i> ROAs 277, 288. The Court further notes that all relevant events preceding the herein motion began well after the effective date of amendments to California Code of Civil Procedure Section 2016.040. <i>See</i> ROA 277, ¶ 4. Additionally, Rule 3.1345 of the California Rules of Court requires motions to compel further responses to requests for production and motions to compel answers at deposition to be accompanied by a separate statement. Cal. Rules of Court rule 3.1345(a). No separate statement is
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		required when: (i) no response has been provided to the discovery request; or (ii) a court has permitted the moving party to submit a concise outline of the discovery request and each response in the dispute instead of a separate statement. Cal. Rules of Court rule 3.1345(b). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a motion. <i>See Mills v. U.S. Bank</i>, 166 Cal. App. 4th 871, 893 (2008). Importantly, in addition to a declaration outlining the moving party's efforts to meet and confer in good faith to resolve the underlying discovery disputes, California Code of Civil Procedure Section 2031.310 requires the party seeking to compel further responses to requests for production to "set forth specific facts showing good cause justifying the discovery sought by the demand." Cal. Civ. Proc. Code § 2031.310(b)(1). Under this Court's reading of the Civil Discovery Act, a moving party is not relieved from the good cause showing requirement by nesting requests for production with a deposition notice. While the Court has discretion to hear a motion despite the lack of a separate statement, here, the Court finds that Defendant's failure to provide a separate statement establishing good cause for the requested further responses to its requests for production is fatal to that portion of the motion. Taken together, Defendant's failure to satisfy the statutory meet and confer requirements and failure to provide a separate statement warrant denial of Defendant's motion, despite the perceived merits of Defendant's position. Sanctions re: Motions to Compel Discovery The California Code of Civil Procedure authorizes the imposition of various sanctions for misuse of the discovery process, including, but not limited to, "[making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery." Cal. Civ. Proc. Code § 2023.010(h). California Code of Civil Procedure Section 2025.480 imposes mandatory monetary sanctions "against any party
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		... who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2025.480(j). The term "substantial justification" means a justification that "is clearly reasonable because it is well grounded in both law and fact." <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal .App. 4th 1424, 1434 (2011). Here, Defendant's motion fails due to Defendant's failure to satisfy the statutory provisions of California Code of Civil Procedure 2016.040. Defendant does not offer, and the Court does not find ,any substantial justification for Defendant's failure to adhere said provisions. However, because Plaintiff's opposition does not seek sanctions, the imposition of sanctions upon Defendant for unsuccessfully bringing this motion would implicate due process. Thus, although sanctions are proper, they would be unjust in this matter. Accordingly, the Court DENIES Defendant's motion on procedural grounds. Plaintiff shall give notice.
2.	<u>30-2023-01330408-CU-IC-CJC</u> U.S. Bank National Association vs. Pacific Life Insurance Company	Before the Court is one Motion to Compel Deposition, and Sanctions, brought by Plaintiff and Cross-Defendant U.S. Bank National Association ("Plaintiff") against Defendant and Cross-Complainant Pacific Life Insurance Company ("Defendant"). ROA 361. The underlying controversy concerns the payment of death benefits under a life insurance policy. The action involves claims of breach of contract, breach of the covenant of good faith and fair dealing, promissory estoppel, and unjust enrichment, as well as counterclaims that the underlying policy is void under Delaware law. ROA 361, p.7. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2025.450 compelling Defendant, within six (6) days of a ruling on this motion, to produce its persons most qualified ("PMQ") to testify on the topics

		specified in Plaintiff's Notice of Deposition served on Defendant on March 6, 2026. ROA 361, p.2 Additionally, Plaintiff seeks an order imposing monetary discovery sanctions upon Defendant in the amount of \$14,944.50. ROA 609, Decl. of Nogues, ¶ 8. Defendant requests that the Court deny Plaintiff's motion. ROA 511, p.15. Service of Deposition Notice A "plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant." Cal. Civ. Proc. Code § 2025.210(b). A court may grant a plaintiff leave to serve a deposition notice on an earlier date, either on motion or without notice, for good cause shown. <i>Id.</i> Here, summons was served upon Defendant on June 8, 2023. ROA 3. Plaintiff served Defendant with the Notice of Deposition of Defendant's Advanced Design Unit ("ADU") PMQ on March 6, 2026. ROA 361, Decl. of Jean Pierre Nogues ("Nogues"), ¶ 12. The 20-day limit imposed by Section 2025.210 is satisfied here. Oral depositions must be scheduled at least ten (10) days after service of the deposition notice, unless shortened or extended by the court for good cause shown. Cal. Civ. Proc. Code 2025.270. Here, Plaintiff's notice set the deposition to occur on March 18, 2026, twelve days after service of the deposition notice. ROA 361, Exh. 9, p.59. Thus, the ten (10) day limit imposed by Section 2025.270 is satisfied. The deposition of a natural person must be taken, at the noticing party's option, at a place that is <i>either</i> within seventy-five (75) miles from the deponent's residence <i>or</i> anywhere within the county where the action is pending that is also within 150 miles of the deponent's residence. Cal. Civ. Proc. Code 2025.250(a). A court may exercise its discretion to permit the deposition of a natural person at a place more distant than that permitted under Section
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	2025.250, upon motion accompanied by a meet and confer declaration and after considering “any factor tending to show whether the interests of justice will be served” in doing so. Cal. Civ. Proc. Code § 2025.260(a), (b). Here, Plaintiff’s deposition notice scheduled the deposition to occur at Plaintiff’s counsel’s place of business at 11377 West Olympic Boulevard, Los Angeles, California 90064. ROA 361, Exh. 9, p.59. Defendant does not argue that the location is beyond the 75-mile restrictions imposed by Section 2025.250. A party that is served with a deposition notice that does not comply with the provisions of Section 2025.210, outlined above, waives any error or irregularity unless they serve a written objection specifying the error or irregularity at least three (3) days before the scheduled deposition upon the noticing party and all other parties served with notice of the deposition. Cal. Civ. Proc. Code § 2025.410(a), (b). On March 18, 2026, the day of the scheduled deposition, Defendant refused to produce their ADU PMQ for deposition and instead served objections to Plaintiff’s deposition notice. ROA 361, Decl. of Nogues, ¶ 14. The Court finds that Defendant’s objections are untimely and that none of Defendant’s objections are valid objections to a deposition notice pursuant to California Code of Civil Procedure Sections 2025.230 and 2025.410. <i>See</i> ROA 361, Exh. 10. Pursuant to the foregoing, the Court finds that Plaintiff’s deposition was properly noticed and that Defendant has waived any error or irregularity. Motions to Compel Deposition Under California Code of Civil Procedure Section 2025.450, when a party to the action fails to appear for examination after having received proper deposition notice, and without having served a valid objection under Section 2025.410, the party giving notice may move for an order compelling the deponent’s attendance, testimony, and production of documents. Cal. Civ. Proc. Code § 2025.450(a).
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	All motions to compel a deponent to appear or proceed with deposition, or to produce documents, electronically stored information, or tangible things for inspection must “be accompanied by a meet and confer declaration” that states that the moving party “has contacted the deponent to inquire about the nonappearance” or failure to produce. Cal. Civ. Proc. Code § 2025.450(b)(2). The meet and confer declaration must satisfy the statutory requirements of California Code of Civil Procedure Section 2016.040 only when a party seeks a deponent's <i>further</i> responses to questions posed at deposition. <i>Id.</i> Here, on March 17, 2026, the parties met and conferred regarding Plaintiff’s Notice of Deposition. ROA 361, Decl. of Nogues, ¶ 13. Defendant protested the timing of the deposition on the grounds that it was inconvenient, given the then-pending motion for summary judgment. <i>Id.</i> On April 14, 2026, the parties again met and conferred regarding the Defendant’s ADU PMQ's nonappearance but were unable to resolve the dispute. ROA 361, Decl. of Nogues, ¶ 14. On April 15, 2026, Plaintiff served Defendant with the herein motion. ROA 361, p.81. Pursuant to the foregoing, and because Defendant failed to appear for the properly noticed deposition, the Court finds that Plaintiff has satisfied the less restrictive statutory meet and confer requirement under California Code of Civil Procedure Section 2025.450(b)(2). Rule 3.1345 of the California Rules of Court requires motions to compel answers at deposition to be accompanied by a separate statement. Cal. Rules of Court, rule 3.1345(a). No separate statement is required when: (i) no response has been provided to the discovery request; or (ii) a court has permitted the moving party to submit a concise outline of the discovery request and each response in the dispute instead of a separate statement. Cal. Rules of Ct. rule 3.1345(b). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a discovery motion. <i>See Mills v. U.S. Bank</i>, 166 Cal.
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	App. 4th 871, 893 (2008). Here, the Court finds that Defendants failed to appear for Plaintiff’s properly noticed depositions without serving valid objections. Because Defendants never responded to questions at the deposition, the Court finds that Plaintiff is not required to submit a separate statement. Pursuant to the foregoing, the Court finds that Plaintiff’s motion is proper, that Defendant has not raised any valid objections to the deposition notice, and that the deposition must therefore proceed under Court order. Sanctions re: Motions to Compel Deposition When a court grants a motion to compel under Section 2025.450, the court must impose monetary sanctions in favor of the noticing party and against the deponent, “unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2025.450(g)(1). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court does not find, and Defendant does not offer, any substantial justification for Defendant’s failure to either raise legitimate objections to Plaintiff’s deposition notice or to appear at Plaintiff’s properly noticed deposition. Additionally, the Court finds no facts indicating that imposing monetary sanctions will result in an injustice to the Defendant. Apportioning Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts shall impose monetary sanctions absent
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		a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where the client refused to submit to x-rays and the attorney’s declarations show that the attorney attempted to convince the client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. See generally <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 256. If the Court finds that both are responsible, sanctions can be imposed jointly and severally. See <i>Cornerstone, supra</i>, 56 Cal. App. 5th 771, 799 (2020).
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	“An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney’s actions were in some way improper and contributed to the disobedience of the court order.” <i>Corns, supra</i>, 181 Cal. App. 3d at 200; <i>see Ghanooni, supra</i>, 20 Cal. App. 4th at 261. Illustrating this point, the <i>Ghanooni</i> court reversed a lower court’s order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Id.</i> The court found that counsel’s mere opposition to a motion to compel X-rays from their client did not give rise to an inference that counsel advised disobedience in the first instance, where the client’s refusal was attributable to their generalized fear of exposure to radiation, which is not sufficient justification to refuse a motion to compel. <i>Id.</i>; <i>see Kwan, supra</i>, 58 Cal. App. 5th at 83. Here, the record before the Court indicates that Defendant's counsel likely instructed Defendant not to appear at Plaintiff’s properly noticed deposition. <i>See</i> ROA 361, Decl. of Nogues, ¶ 13. However, because Plaintiff’s motion does not place Defendant’s counsel on notice of the potential imposition of sanctions for discovery misuse, to impose sanctions upon Defendant’s counsel would violate due process. <i>See</i> Cal. Civ. Proc. Code § 2023.030 (requiring that any “party, person, or attorney” upon whom a court imposes sanctions for misuse of the discovery process first be provided with notice). Thus, the Court elects to withhold a determination as to the liability for sanctions until such time as the Court can consider evidence as to which party, Defendant or Defendant’s counsel, is at fault. Determining a Reasonable Sanctions Amount Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 790 (compulsion, causation, and reasonableness). Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions to be accompanied by “a declaration setting forth facts supporting the amount of any monetary sanction sought.” Cal. Civ. Proc. Code § 2023.040. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party
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	incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i> (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). Pursuant to the foregoing, and after having considered Plaintiff’s counsel’s declaration concerning attorney’s fees and costs associated with bringing the instant motions, the Court finds that Plaintiff’s counsel is entitled to monetary discovery sanctions in the amount of \$13,619.50. Ruling Accordingly, the Court issues the following orders: The Court GRANTS Plaintiff’s Motion to Compel Deposition (ROA 361) and ORDERS Defendant to produce its Advanced Designs Unit Person Most Qualified for deposition by no later than July 23, 2026. Additionally, the Court ORDERS Defendant and Defendant’s counsel of record to appear and Show Cause re: Liability for \$13,619.50 in monetary discovery sanctions, at 9:00 a.m. in this Department on July 23, 2026. Alternatively, Defense counsel may appear for hearing on this matter and elect to waive notice regarding the imposition of discovery sanctions, then the OSC may be vacated. Plaintiff shall give notice.
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3.	<u>30-2025-01494202-CU-CR-CJC</u> Johnston vs. The Regents of the University of California	Before the Court is a Motion to Clarify and/or Modify Minute Order. ROA 114. On May 15, 2026, Plaintiff Angelea Johnston (“Plaintiff”) filed the instant Motion to Clarify and/or Modify Minute Order. ROA 114. On June 25, 2026, Defendant The Regents of The University of California (“Defendant University”) and Defendant Dr. Deepti Pandita (“Defendant Pandita”) (collectively “Defendants”) filed their Opposition to Plaintiff’s Motion. ROA 121. Plaintiff request that the Court “issue a clarifying order, or a modified Minute Order, confirming whether its April 29, 2026, Minute Order was intended to include a limitation restricting the subpoenas to neurological records, or whether the omission of that limitation was intentional.” ROA 106. Defendants request that the Court deny Plaintiff’s Motion in its entirety. ROA 121. At the outset, the Court notes that Plaintiff does not seek relief in the form of reconsideration under California Code of Civil Procedure Section 1008. ROA 106. I. Motion to Clarify and/or Modify Minute Order Plaintiffs request relief under California Code of Civil Procedure Section 128(a)(3), which states that every court shall have the power to do, among other things, provide for the orderly conduct of proceedings before it, or its officers. <i>See</i> Cal. Civ. Proc. Code §128(a)(3). Additionally, California Code of Civil Procedure Section 473(d) allows the Court upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order. Cal. Civ Proc. Code §473(d).
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		The Court's April 29, 2026, Minute Order provides as follows: [t]he parties stipulate, and the Court orders, that the LASC Model Protective Order will be modified to include an elevated AEO designation governing the treatment of confidential information produced in this action, including by third parties; (2) Motions to Quash will be GRANTED and DENIED IN PART. The Court orders the subpoenas to be limited to a ten year temporal scope, inclusive of January 1, 2016, to present. Moreover, the Court orders no "first look" opportunity given to plaintiff. All records to be produced to all parties with appropriate confidentiality designations contemporaneously. ROA 101. The Court finds that the Order accurately reflects the Court's intended ruling. There is no clerical error, omission, or ambiguity warranting clarification or modification under Code of Civil Procedure Sections 128(a)(3) or 473(d). Accordingly, Plaintiff's Motion to Modify or Clarify is DENIED.
4.	<u>30-2022-01262979-CU-OE-CJC</u> Patel vs. Amanda Rafi, DMD, A Professional Dental Corporation	Before the Court are the following four (4) motions brought by Plaintiff Paris Patel ("Plaintiff") against Defendant Amanda Rafi ("Defendant"): a Motion to Compel Further Responses to Form Interrogatories ("MF-FROG"), Set Three, and Sanctions (ROA 421); a Motion to Compel Further Responses to Special Interrogatories ("MF-SROG"), Set Four, and Sanctions (ROA 423); a Motion to Compel Further Responses to Requests for Admission ("MF-RFA"), Set Three, and Sanctions (ROA 425); and a Motion to Compel Further Responses to Requests for Production ("MF-RFP"), Set Five, and Sanctions (ROA 426). The underlying controversy involves claims of breach of contract, breach of good faith, labor code violations, retaliation, unfair business practices, and cross-complaints of misappropriation of trade secrets, intentional interference with contractual relations, negligent interference with prospective economic relations, and breach of oral contract. ROAs 2, 290. Plaintiff was employed

	by Defendant from July 2020 through December 2021. ROA 421, Decl. of Judith Camilleri (“Camilleri”), ¶ 2. The controversy arises from Defendant’s alleged failure to pay commissions and wages to Plaintiff. <i>Id.</i> at ¶ 3. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2030.300, compelling Defendant to provide further, verified, code compliant responses to Plaintiff’s Form Interrogatories (“FROG”), Set Three, Nos. 17.1(b) re: Requests for Admission (“RFA”), Set Three, Nos. 26, 29, 30, 31, and 45, and imposing sanctions upon Defendant and Defendant’s counsel of record, Mirhosseini Law Group, jointly and severally, in the amount of \$3,120.00, for the costs incurred by Plaintiff in bringing her MF-FROG, Set Three. ROA 421, pp. 2-3. Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Section 2031.300, compelling Defendant to provide further, verified, code compliant responses to Plaintiff’s Special Interrogatories (“SROG”), Set Four, Nos. 25, 33, 46, 53, 56, 59, 62, 87, and 94, and imposing sanctions upon Defendant and Defendant’s counsel of record, Mirhosseini Law Group, jointly and severally, in the amount of \$5,520.00, for the costs incurred by Plaintiff in bringing her MF-SROG, Set Four. ROA 423, p.11. Additionally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010 and 2033.290, imposing sanctions upon Defendant and Defendant’s counsel of record, Mirhosseini Law Group, jointly and severally, in the amount of \$3,420.00, for the costs incurred by Plaintiff in bringing her MF-RFA, Set Three. ROA 425, pp. 2-3. Lastly, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Defendant to provide further, verified, code compliant responses to Plaintiff’s Requests for Production (“RFP”), Set Five, Nos. 41, 62, 63, 64, and 79, and imposing sanctions upon Defendant and Defendant’s counsel of record, Mirhosseini Law Group, jointly and severally, in the amount of \$4,320.00 for the costs incurred by Plaintiff in bringing her
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		MF-RFP, Set Five. ROA 423, p.11. In total, Plaintiff seeks \$16,380.00 in monetary discovery sanctions. Defendant requests that the Court deny Plaintiff's motions and requests for sanctions. ROA 429, p.8; ROA 439, p.8; ROA 445, pp. 10-11. I. Meet and Confer Requirements re: Motions to Compel Further Responses to Discovery Requests The meet and confer requirement is intended to promote the public policy of judicial economy and to encourage the informal resolution of discovery disputes. <i>Townsend v. Super. Ct.</i>, 61 Cal. App. 4th 1431, 1434-35 (1998) (<i>citing DeBlase v. Super. Ct.</i>, 41 Cal. App. 4th 1279, 1284 (1996)); <i>see</i> Cal. Civ. Proc. Code 2023.010(i) (failing to meet and confer, or failing to make an attempt to meet and confer, either in person, by phone, or by videoconference, is subject to sanctions when a meet and confer declaration is required by statute). Parties' obligation to meet and confer under the California Code of Civil Procedure arises only after responses are contested or upon a motion for a protective order. Cal. Civ. Proc. Code §§ 2025.420(b), 2025.450(b)(2), 2030.090(a), 2030.300(b)(1), 2031.060(a), 2031.310(b)(2), 2033.080(a), 2033.290(b)(1). Both statute and case law demand a reasonable, good faith effort by the moving party to meet and confer before submitting a motion to compel further responses. Cal. Civ. Proc. Code §§ 2016.040 ("[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt . . . to informally resolve each issue presented by the motion."), 2030.300(b), 2031.310(b)(2), 2033.290(b)(1); <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1298-99 (2024) ("in order to bring a motion to compel discovery, the propounding party must first engage in reasonable and good faith attempts at informal resolution . . .").
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	Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). Here, Plaintiff propounded FROG, Set Three; RFA, Set Three; SROG, Set Four; and RFP, Set Five; upon Defendant on November 12, 2025, by e-service. ROA 421, p.27; ROA 423, p.32; ROA 425, Decl. of Camilleri, ¶ 3; ROA 426, p.28. On December 9, 2025, Plaintiff granted Defendant’s request for an extension to provide initial responses by January 7, 2026. ROA 421, Decl. of Camilleri, ¶ 5. On January 7, 2026, Defendant served initial responses to Plaintiff’s herein discovery demands. ROA 421, p.37. That same day, Plaintiff sent Defendant an email offering to meet and confer regarding Defendant’s responses. ROA 421, p.40. On January 12, 2026, Plaintiff sent Defendant a letter detailing why Defendant’s responses were insufficient and requesting supplemental responses by January 22, 2026. ROA 421, Decl. of Camilleri, ¶ 8. From January 20, 2026, to February 3, 2026, Plaintiff agreed <i>three (3) times</i> to extend the January 22, 2026, deadline to provide supplemental responses, ultimately agreeing to a deadline of February 6, 2026. ROA 421, Decl. of Camilleri, ¶ 9. In return, Defendant agreed to a reciprocal extension of Plaintiff’s deadline to file motions to compel further responses to March 20, 2026. ROA 421, p.50; ROA 423, p.74. On February 6, 2026, Defendant served supplemental responses to Plaintiff’s herein discovery demands. ROA 421, Decl. of Camilleri, ¶ 10.
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	On February 11, 2026, Plaintiff sent another detailed letter addressing Defendant's supplemental responses and requesting code compliant responses no later than February 23, 2026. ROA 421, p.69; ROA 423, p.124. On February 17, 2026, Plaintiff granted Defendant an extension until March 2, 2026, to serve further supplemental responses. ROA 421, Decl. of Camilleri, ¶ 12. On March 2, 2026, Defendant confirmed that she would not provide further supplemental responses to RFA, Set Three; and SROG, Set Four, but agreed to provide a further supplemental response to Plaintiff's FROG, Set Three, re: RFA, Set Three, No. 22. ROA 421, Exh. J. Additionally, Defendant served limited supplemental responses to Plaintiff's RFP, Set Five. ROA 426, Decl. of Camilleri, ¶ 13. Plaintiff served her MF-RFP, Set Five, that same day. ROA 348, p.130. On March 6, 2026, Plaintiff served her MF-FROG, Set Three, and MF-RFA, Set Three, by e-service. ROA 352, p.74; ROA 359, p.98 On March 9, 2026, Plaintiff served her MF-SROG, Set Four, upon Defendant, by e-service. ROA 366, p.129. Pursuant to the foregoing, the Court finds that Plaintiff's motions are substantially justified. The record presents compelling evidence that Defendant engaged in improper gamesmanship and provides ample grounds to grant the requested relief. Nevertheless, Plaintiff's motions suffer from a fatal procedural defect. Accordingly, despite the merits of Plaintiff's position, the Court is reluctantly compelled to deny the motions on procedural grounds. While the Court finds that Plaintiff's declarations in support of her motions satisfy the requirement to attempt to meet and confer in person, by phone, or over video, they do not state facts that satisfy the statutory requirement that the moving party attempt to meet and confer regarding the retention of a certified shorthand reporter. ROA 421, Decl. of Camilleri; ROA 423, Decl. of Camilleri; ROA 425, Decl. of
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	Camilleri. Consequently, because Plaintiff has not satisfied the statutory requirements of California Code of Civil Procedure Section 2016.040(b), Plaintiff's motions are denied on procedural grounds. Sanctions re: Motions to Compel Further Responses to Discovery Requests The Civil Discovery Act provides that courts <i>shall</i> impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel further response[s] . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(d), 2033.290(d). "“Whenever one party's improper actions—even if not “willful”—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party.” <i>Ellis v. Toshiba Am. Info. Sys. Inc.</i>, 218 Cal. App. 4th 853, 878 (2013) (quoting <i>Clement v. Alegre</i>, 177 Cal. App. 4th 1277, 1286-1287 (2009)). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court finds no substantial justification for Plaintiff's failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However, under the Court's reading of Chapter Seven of the Civil Discovery Act, failing to confer regarding the retention of a certified shorthand reporter is not an act subject to sanctions. <i>See</i> Cal. Civ. Proc. Code § 2023.010(i). Thus, the Court finds that sanctions are not appropriate. Consequently, the Court DENIES Plaintiff's motions.
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		Clerk shall give notice.
5.	<u>30-2024-01424411-CU-PA-CJC</u> Avila vs. Peterson	Before the Court is a Motion to Compel Physical/Mental Examination. ROA 90. On May 1, 2026, Defendant James Edward Peterson ("Defendant James") and Defendant Christine Peterson ("Defendant Christine") (collectively "Defendants") filed the instant Motion to Compel Physical/Mental Examination against Plaintiff Perry Avila ("Plaintiff"). ROA 90. Defendants request that the Court issue an order compelling Plaintiff to attend and complete the mental examination with Dr. Dean Delis. ROA 90. Plaintiff requests that the Court deny the Motion in its entirety. ROA 102. I. Motion to Compel Physical/Mental Examination California Code of Civil Procedure Section 2032.020 permits a party to obtain discovery by means of a physical or mental examination of another party or their agent "in any action in which the mental or physical condition of that party . . . is in controversy in the action." Cal. Civ. Proc. Code § 2032.020(a). "If a defendant who has demanded a physical examination under this article, on receipt of the plaintiff's response to that demand, deems that any modification of the demand, or any refusal to submit to the physical examination is unwarranted, that defendant may move for an order compelling compliance with the demand." Cal. Civ. Proc. Code § 2032.250(a).

	This motion shall be accompanied by a meet and confer declaration under Section 2016.040. <i>Id.</i> Effective January 1, 2026, a meet and confer declaration “shall state facts showing a reasonable and good faith attempt” on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; email alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party’s declaration “shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion.” Cal. Civ. Proc. Code § 2016.040(b). The Court finds that Defendants engaged in sufficient meet and confer efforts with Plaintiff; however, the supporting declaration is deficient because it does not state whether the parties met and conferred, including through electronic communication, regarding the retention of a certified shorthand reporter, as required by Code of Civil Procedure Section 2016.040(b). Accordingly, the meet and confer declaration does not comply with the statutory requirements, and denial is warranted on this procedural ground. II. Mandatory Sanctions The Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel response and compliance with a demand for a physical examination, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code § 2032.240(c). Here, the Court finds no substantial justification for Defendants’ failure to satisfy the provisions of California Code of Civil Procedure Section 2016.040(b). However, while the Civil Discovery Act authorizes sanctions for a party’s failure to make a good faith effort to meet and confer in person, by telephone, or by videoconference
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		before seeking court intervention, the Court finds no corresponding provision in Chapter 7 of the Act that renders sanctionable a party's failure to confer regarding the retention of a certified shorthand reporter. <i>See</i> Cal. Civ. Proc. Code § 2023.010(i). Thus, the Court finds that sanctions against Defendants are not proper. Accordingly, Defendants' Motion to Compel Physical/Mental Examination is DENIED. Plaintiff to give notice.
6.	30-2025-01494927-CU-PO-NJC Orellana vs. ROSS Stores, Inc.	Before the Court is a Motion to Compel Further Responses to Requests for Production (ROA 43) and a Motion for Relief from Waiver of Objections (ROA 54). On March 23, 2026, Plaintiff Edna Lourdes Orellana ("Plaintiff") filed a Motion to Compel Production of Documents against Defendant Ross Dress for Less, Inc. ("Defendant"). ROA 43. On May 22, 2026, Defendant filed a Motion for Relief from Waiver of Objection. ROA 54. Plaintiff requests that the Court grant its Motion to Compel Further Responses to Production and impose sanctions in the amount of \$1,400 against Defendant and its counsel of record. ROA 43. Defendant requests that the Court deny Plaintiff's Motion and request for sanctions in its entirety. ROA 61. Additionally, Defendant requests that the Court grant its Motion for Relief from Waiver. ROA 54. I. Motion to Compel Production In the interest of reaching a conclusion of the discovery dispute on the merits, the Court exercises its discretion to construe the instant Motion to Compel <i>Further</i> as a Motion to Compel <i>Initial</i>. <i>See infra</i>. Under California Code of Civil Procedure Section 2031.300, if a party to whom a demand for inspection, copying,

testing, or sampling is directed *fails to serve a timely response* to it, the party waives any objection to the demand, including one based on privilege or on the protection for work product. Cal. Civ. Proc. Code § 2031.300(a). The propounding party may move for an order compelling response to the demand. *Id.* at (b).

On November 7, 2025, Plaintiff propounded discovery on Defendant. ROA 43.

After an agreed upon extension, Defendant's responses to Requests for Production were due on January 20, 2026. *Id.* Defendant failed to serve its response until January 21, 2026. *Id.* Defendant's responses to Requests for Production Nos. 9 and 10 were only objections. ROA 66.

At that time, objections were waived by operation of law. ROA 43. With the objections waived, Defendant had not served any substantive responses to Requests Nos. 9 and 10. Under these circumstances, the proper procedural vehicle is a motion to compel responses under Code of Civil Procedure Section 2031.300, rather than a motion to compel further responses.

Accordingly, consistent with the substance of the relief sought and the requirements of Code of Civil Procedure Section 2031.300, the Court construes Plaintiff's Motion to Compel Further Responses as a Motion to Compel Responses and **GRANTS** the motion as so construed.

II. Motion for Relief from Waiver of Objections

California Code of Civil Procedure Section 2031.300 provides that the Court, on motion, may relieve a party from waiver on its determination that both of the following conditions are satisfied: "[t]he party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280"; and "[t]he party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect." Cal. Civ. Proc. Code § 2031.300 (a), (1), (2).

	A person who seeks relief under the theory of excusable neglect must show that the neglect was attributable to an act or omission which might have been committed by reasonably prudent person under the circumstances. <i>Transit Ads, Inc. v. Tanner Motor Livery, Ltd</i>, 270 Cal. App. 2d 275, 279 (1969) (citations omitted). Defendant argues that Defendant's failure to serve timely responses resulted from mistake, inadvertence, and/or excusable neglect. ROA 54. Defendant explains that "[o]n or about May 7, 2026, current counsel discovered the underlying issue stemmed from <i>continued issues</i> between former defense counsel and her legal assistant." ROA 54 (emphasis added). Defendant adds that "during this time [former counsel had] issues with [her] legal assistant and numerous deadlines were missed as a result of those issues." ROA 55. The Court is not persuaded that these circumstances meet the mistake, inadvertence, or excusable neglect standard. Former counsel acknowledges she was experiencing <i>ongoing</i> difficulties with the legal assistant yet, nevertheless, relied on that assistant to complete service and did not verify service had occurred. Accordingly, Defendant has not met both conditions and Defendant's Motion for Relief from Waiver is DENIED. ROA 54. III. Mandatory Sanctions The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or <i>opposes</i> a motion to compel response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Cal. Civ. Proc. Code § 2031.300(c). The term "substantial justification" means "a justification that 'is clearly reasonable because it is well grounded in both law and fact.'" <i>In re Marriage of Moore</i>, 102 Cal. App.
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	5th 1275, 1287 (2024) (<i>quoting Doe v. United States Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434, (2011)). To avoid sanctions, an unsuccessful opponent to a motion to compel may show “substantial justification” for his or her position—i.e., a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (<i>citing Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996); <i>See also</i> Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc.</i>, <i>supra</i> at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer United States, Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). In light of Defendant’s lack of substantial justification sanctions are mandatory. IV. Amount of Sanctions Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 790 (2020) (compulsion, causation, and reasonableness). The most significant one for the Court’s analysis here is reasonableness. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i> at 791 (citing <i>Parker supra</i>, 149 Cal. App. 4th at 294). Having weighed the three aforementioned principles, the Court finds that the sanctions sought by the moving party
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		are reasonable. Accordingly, Plaintiff's Motion to Compel Production (ROA 43) is GRANTED. Additionally, Defendant's Motion for Relief from Waiver of Objections (ROA 54) is DENIED and objections are waived by operation of law. Defendant shall produce any and all responsive documents for Request for Production Nos. 9 and 10 without objection no later than July 24, 2026. Additionally, the Court IMPOSES sanctions in the amount of \$1,400 against Klinedinst PC due and payable to Martinian Lawyers Inc. within thirty (30) days of receiving notice. Plaintiff to give notice.
7.	<u>30-2022-01274513-CU-EI-CJC</u> Busk vs. Yorba Linda Water District	